BEFORE THE NATIONAL COMPANY LAW TRIBUNAL
COURT NO. III, NEW DELHI

CA (CAA)- 68/(ND)/2023

IN THE MATTER OF SECTIONS 230-232 OF COMPANIES ACT, 2013

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

IN THE MATTER OF SCHEME OF AMALGAMATION

M/S YMER TECHNOLOGY INDIA PRIVATE LIMITED

(Applicant Company/Transferor Company)

WITH

M/S HYDRASPECMA INDIA PRIVATE LIMITED

(Non-Applicant/Transferee Company)

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITOR

CORAM:

SH. BACHU VENKAT BALRAM DAS, HON'BLE MEMBER (JUDICIAL)

SH. ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

MEMO OF PARTIES

1. M/S YMER TECHNOLOGY INDIA PRIVATE LIMITED

Company registered under the Companies Act, 1956, having its Registered Office at**:**
S-327, Basement Floor,
Greater Kailash-II,
Delhi, South Delhi-110048

...Applicant Company/Transferor Company

WITH

2. M/S HYDRASPECMA INDIA PRIVATE LIMITED

Company registered under the Companies Act, 1956, having its Registered Office at**:**
GB 130A,
Greenbase Industrial & Logistics Park,
Vadakkupattu Village, Kundrathur Taluk,
Kancheepuram, Tamil Nadu-603204

...Non-Applicant/ Transferee Company

Order Delivered on: 04.12.2023

O R D E R

PER- ATUL CHATURVEDI, MEMBER (TECHNICAL)

1. This application (CA (CAA)-68(ND)/2023) have been filed by the applicant company herein, M/s. Ymer Technology India Private Limited("Applicant Company/Transferor Company") for Scheme of Amalgamation with M/s. Hydraspecma India Private Limited ("Non-Applicant Company/Transferee Company")under section 230-232 of Companies Act, 2013, and other

applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed by the applicant.

2. Affidavits in support of the above application have been sworn by Mr. Parthasarathy Babu, Director of Transferor Company, who have been authorized vide board resolution dated 10.05.2023 for the Applicant Company and have been duly filed, along with the application. It was also represented that the registered office of the Applicant Company is under the domain of Registrar of Companies, NCT of New Delhi & Haryana and within the territorial jurisdiction of this Tribunal.

3. The Transferor Company-M/s Ymer Technology India Private Limited bearing Corporate Identification No (CIN): U29192DL2020FTC374337 was incorporated under the provisions of the Companies Act, 2013, as a private limited company vide Certificate of Incorporation dated 9th December 2020, having its registered office at S-327, Basement Floor, Greater Kailash-II, Delhi South Delhi-110048. The Authorized Share Capital of the Transferor Company is Rs. 6,00,00,000/- (Rupees Six Crore Only) divided into 60,000 (Sixty Thousand) equity shares of Rs. 1000/- (Rupees One Thousand) each. The Issued, Subscribed and Paid-up Share Capital of the Transferor Company is Rs. 4,05,00,000/- (Rupees Four Crore Five Lakhs Only) divided into 40,500 (Forty Thousand Five Hundred) equity shares of Rs. 1000/- (Rupees One Thousand) each, fully paid-up.

4. The Transferee Company – M/s Hydraspecma India Private Limited bearing Corporate Identification No. (CIN): U29219TN2007PTC063264 was incorporated under the provisions of the Companies Act, 1956, as a private limited company vide Certificate of Incorporation dated 24th April 2007, having

its registered office at GB 130A, Greenbase Industrial & Logistics Park, Vadakkupattu Village, Kundrathur Taluk, Kancheepuram, Tamil Nadu-603204 The Authorized Share Capital of the Transferor Company is Rs. 1,50,00,000/- (Rupees One Crore Fifty Lakhs Only) divided into 15,00,000 (Fifteen Lakhs) Equity Share of Rs. 10 each. The Issued, Subscribed and Paid-up Share Capital of the Company is Rs. 1,03,08,000/- (Rupees One Crore Three Lakhs Eight Thousand Only) divided into 10,30,800 (Ten Lakhs Thirty Thousand Eight Hundred) equity shares of Rs. 10/- (Rupees Ten) each, fully paid-up.

5. The Transferor Company as well as the Transferee Company have filed their respective Memorandum and Articles of Association inter alia delineating their object clauses, as well as their last Audited Annual Accounts as on 31.03.2022.

6. The Transferor Company and Transferee Company, vide their respective meeting of the Board of Directors held on 10th May 2023 have unanimously approved the proposed Scheme of Amalgamation.

7. The Transferor Company have further placed on record the certificate of statutory auditors regarding conformity of accounting treatment in the scheme is in consonance with Section 133 of the Companies Act, 2013.

8. The management wishes to amalgamate the Transferor Company with the Transferee Company for following benefits: -
   i) Result in improved shareholder value for all Companies by way of improved financial structure and cash flows, increased asset base and stronger consolidated revenue and profitability and higher net worth of combined entity.
   ii) Consolidation of Companies and increase shareholder's wealth.
   iii) Minimize ongoing compliance and administrative formalities.

9. The appointed date as specified in the Scheme is 01.04.2023 subject to the directions of this Tribunal.

10. Taking into consideration the submissions and the documents filed therewith, the following directions are issued forthwith in respect of convening/holding or dispensing with the meetings of the Shareholders, Secured and Unsecured Creditors as well as issue of notices as follows:

I. <u>In relation to the Transferor Company: (M/S YMER TECHNOLOGY INDIA PRIVATE LIMITED)</u>

a) **With respect to Equity shareholders:** The Transferor Company seeks for holding the meeting of Equity shareholders. There are 2 Equity Shareholders. The meeting of the Equity Shareholders of the Transferor Company is directed to be held at the venue, date, time and mode as decided by the Chairperson in consultation with the counsel for Applicant Company. The qorum for the meeting will be 2 in number.

b) **With respect to Secured Creditors:** There are nil Secured Creditors, therefore the necessity of convening of the meeting does not arise.

c) **With respect to Unsecured Creditors:** The Transferor Company seeks for holding the meeting of Unsecured Creditors. There are 12 Unsecured Creditors. The meeting of the Unsecured Creditors of the Transferor Company is directed to be held at the venue, date, time and mode as decided by the Chairperson in consultation with the counsel for Applicant Company. The qorum for the meeting will be 7 in number.

11. Mr. Nithin Chowdary Pavuluri Mobile No. 8930133106 and Email id- nitinchowdary11@gmail.com is appointed as the Chairperson, Ms. Manisha Chava, Mobile No. 7042346777 is appointed as Alternate Chairperson and Mr. Rustam Singh Chauhan Mobile No. 9971950472 is appointed as Scrutinizer for the meeting of the Equity Shareholders and Unsecured

Creditors of the Transferor Company in terms of the direction issued.

12. In case the quorum as noted above for the aforesaid meetings are not present at the meeting, then the meeting shall be adjourned by half an hour. Thereafter, the persons present and voting shall be deemed to constitute the quorum. The Chairperson appointed herein along with the Scrutinizer shall ensure that the proxy Registers are properly maintained.

13. The Fees of the Chairperson for the aforesaid meetings shall be Rs. 1,00,000/- The Fees of the Alternate Chairperson Shall be Rs. 75,000/- and the Fees of the Scrutinizer shall be Rs. 50,000/- in addition to meeting their incidental expenses. The Chairperson will file his report within a week from the date of holding of the aforesaid meeting. The fees of Chairperson, Alternate Chairperson and Scrutinizer along with the travelling expenses and other out of pocket expenses shall be borne by the Applicant Company. A copy of this order shall be served to the learned counsels for the Applicant Company who in turn shall served a copy of the same to the Chairperson, Alternate Chairperson and the Scrutinizer.

14. Individual Notices shall be sent to the Equity Shareholders and Unsecured Creditors as above by the Applicant Company through email or through registered post or speed post, 30 days in advance before the scheduled date of meeting, indicating the day, date, the place fixed for and time of meeting as aforesaid, together with a copy of the Scheme and copy of explanatory statement as required under the Companies Act, 2013 and the Rules, along with the proxy/forms and any other documents as may be prescribed under the Act. These will be provided free of cost. A compliance affidavit of service will be filed with this Tribunal.

15. The Applicant Company shall publish a notice of meeting at least 30 clear days before the aforesaid meetings, indicating the day, date and the place fixed and time of meetings as aforesaid, which will be published in "Business Standard" (English, Delhi Edition) and in "Business Standard" (Hindi, Delhi Edition). The Applicant Company shall also publish the notice on their websites, if any, and file a compliance affidavit of service with this Tribunal. The Chairperson shall be responsible to report the results of the meetings to the Tribunal in Form No. CAA 4, as per Rule 14 of the Rules within 7 (seven) days of the conclusion of the meetings. The Authorized Representative/ Company Secretary of the Applicant Company and the Scrutinizer, will assist the Chairperson and Alternate Chairperson in preparing and finalising the reports.

16. Voting shall be allowed on the proposed Scheme by voting in person, by proxy, through postal ballot or through electronic means as may be decided by the Chairperson in consultation with the counsel of the Applicant Companies in terms of the provisions of the Companies Act, 2013 and Rules framed there under.

The application **CA (CAA)- 68/(ND)/2023** stands allowed on the aforesaid term and accordingly disposed of.

SD/-	**SD/-**
(ATUL CHATURVEDI)	**(BACHU VENKAT BALRAM DAS)**
MEMBER (TECHNICAL)	**MEMBER (JUDICIAL)**